UNIT IX THE INDIAN CONTRACT ACT

CHAPTER 29

ELEMENTS OF CONTRACT

DZUEIY

செய்வானை நாடி வினைநாடிக் காலத்தோடு
எய்த உணர்ந்து செயல். -குறள் 516

Couplet:
Let king first ask, 'Who shall the deed perform?' and 'What the deed?' Of hour befitting both assured, let every work proceed.

Learning Objectives

To enable the students to

i. Understand the meaning and definition of contract
ii. Learn about the elements of contract
iii. Understand about the various types of contract

29.01 Meaning and Definition

Law means a 'set of rules' which governs our behaviour and relating in a civilized society. So there is no need of Law in a uncivilized society. One to should know the law to which he is subjected to because ignorance of law is no excuse.

Generally life in a civilized society is regulated by a welfare state. The existence and growth of civilized society requires peace, harmony, justice, social security and order which is possible only through laws. Every country has a regulatory framework comprised by a plethora of laws such as constitutional law, civil law, criminal law, tax law, labour law, business law etc. Every law has a particular field of activity to regulate and govern.

The Indian Contract Act

The Indian Contract Act occupies the most important place in the Commercial Law. Without Contract Act, it would have been difficult to carry on trade or any other business activity. It is not only the business community which is concerned with the Contract Act, but it also influences the entire society. The main object of contract act is to assure that the rights and obligations which arise out of the contract are carried out and in case of failure to do so, the remedies are made available to the affected party.

Commerce 26_33.indd 291 12/16/2020 4:13:10 PM